

25NNCV04063 25NNCV04063

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-07-31

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Case Number: 25NNCV04063 Hearing Date: July 31, 2026 Dept: D

TENTATIVE RULING

Calendar: 4

Date: July 31, 2026

Case No: 25NNCV04063 Trial Date: n/a

Case Name: Valdez v. General Motors, LLC et al.

MOTION FOR ATTORNEYS' FEES

[CCP § 1794 subd. (d)]

Moving Party: Plaintiff, Michael A. Valdez

Responding Party: Defendant, General Motors, LLC

RELIEF REQUESTED:

Order awarding attorneys' fees and costs in the amount of \$28,934.00 comprised of attorneys' fees of \$17,980.00, a lodestar multiplier enhancement of \$8,990.00, and costs of \$1,964.43

CAUSES OF ACTION: from Complaint

1) Breach of Express Warranty

2) Breach of Implied Warranty

3) Failure to Repair

4) Negligent Repair

SUMMARY OF FACTS:

This case is a lemon-law action. Michael A. Valdez ("Plaintiff") alleges that on July 1, 2024, Plaintiff purchased a 2024 Chevrolet Traverse, for which General Motors, LLC ("Defendant") issued express warranties. Plaintiff alleges that the vehicle was delivered with defects and nonconformities to warranties. Plaintiff alleges that the defects and nonconformities to warranty manifested themselves within the express warranty period. The Complaint alleges that notwithstanding Plaintiff's entitlement, Defendant has failed to either promptly replace the new motor vehicle or to promptly make restitution in accordance with the Song-Beverly Act.

ANALYSIS:

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (CCP, § 1032 subd. (b).) Attorney fees are allowed as costs when authorized by contract, statute or law. (CCP, § 1033.5, subd. (a)(10)(B).)

In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. Civil Code section 1794 states:

"If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

(Civil Code, § 1794, subd. (d).)

Entitlement to Attorneys' Fees

The parties here do not dispute that Plaintiff is the prevailing party pursuant to a December 2, 2025, Settlement Agreement which provides for an award of attorneys' fees, costs, and expenses to be determined by noticed motion. (Wirtz Decl., ¶ 32, Ex. 7.) Thus, Plaintiff is the prevailing party in this action and is entitled to a reasonable amount of attorneys' fees.

Reasonableness of Fees

Plaintiff seeks an award of attorneys' fees and expenses in the total amount of \$28,934.00 consisting of: (1) \$17,980.00 in attorneys' fees; (2) a 1.5 multiplier enhancement on the attorneys' fees and costs [or \$8,990.00]; and (3) \$1,964.43 in costs. The motion seeks approximately 40.1 hours of time spent by attorneys at Wirtz Law APC at billing rates ranging from \$250.00 to \$600.00 per hour.

Hourly Rate

In determining a reasonable attorneys' fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) These factors include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

"The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group, supra, 22 Cal.4th at p. 1095 ["The experienced trial judge is the best judge of the value of professional services rendered in his court."].)

In connection with attorneys' fee awards under the Song-Beverly Act, "The statute 'requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of 'showing that the fees incurred were "allowable," were "reasonably necessary to the conduct of the litigation," and were "reasonable in amount." ' ' ' (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470, quoting Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

In the opposition, Defendant argues that the billing rates charged are unreasonable. Defendant asserts that the Court should instead apply the rates listed by Wolters & Kluwer in the 2021 Real Rate Report. (Opp., p. 3:27.)

The moving papers submit evidence justifying the billing rates claimed, describing the experience and expertise of each attorney who billed on this matter (Wirtz Decl., ¶¶ 17-23.) The rates requested conform with what this Court would expect to be charged in matters of this nature. The Court has reviewed all evidence submitted and is familiar with the customary billing rates in this county and in cases of this nature. Under the circumstances, the Court finds the billing rates reasonable, and the Court will not reduce the billing rates charged. The Court will however, take into account the high hourly rates charged and counsels' attested levels of expertise when assessing whether the total number of hours expended was reasonable.

Number of Hours

Plaintiff's fee recovery is based on 40.1 hours of time spent litigating this case through the instant motion for which Plaintiff has submitted billing records. (Wirtz Decl., Ex. 1.) Defendant objects to Plaintiff's requested hours on the grounds that several of the billing entries are unreasonable. (Opp., pp. 5:11-25.)

"In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.)

First, Defendant objects to 15.1 hours, representing \$8,010.00, billed for "routine communications and other administrative work." (Opp., p. 5:16.) Defendant asserts that there "were 36 instances of client communication throughout the life of the matter" and "entries pertaining to administrative work include drafting proof of service and reviewing GM's correspondence and pleadings - with no further description beyond "review."" (Opp., p. 5:19-22.) Defendant does not, however, identify any specific billing entries for client communication or document review that it contends are unreasonable. Communicating with a client and reviewing legal documents are generally components of legal representation. Without identifying particular entries that are excessive, unnecessary, or otherwise objectionable, Defendant has not shown that the time billed for these tasks is unreasonable.

Accordingly, the Court declines to reduce the fees on this ground.

Second, Defendant objects to \$2,370.00 for anticipated time to review the opposition, draft a reply, and prepare for and attend the hearing. Defendant argues that these anticipated fees are improper because Plaintiff's counsel has not yet performed these tasks. (Opp., p. 6:5.) Time incurred to establish and defend a fee claim is recoverable. (Ketchum v. Moses, (2001) 24 Cal.4th at 1122, 1141.) The reply has since been drafted and filed, and the 1.0 hour allotted to attend the hearing is reasonable.

Accordingly, the Court declines to reduce the fees on this ground.

Having analyzed the motion and pleadings filed, and having reviewed the billing statements provided, the Court determines that a reasonable lodestar in this case is \$17,980.00 representing 40.1 hours.

Multiplier

While the lodestar reflects the basic fee for comparable legal services in the community, it may be adjusted based on various factors, including "(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award" and (4) the success achieved. (Serrano v. Priest (1977) 20 Cal.3d 25, 49.)

Nonetheless, the court must not consider extraordinary skill and the other Serrano factors to the extent these are already included with the lodestar. (Ketchum v. Moses (2001) 24 Cal. 4th 1122, 1138-1139.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (Id. at 1139.)

Plaintiffs request a lodestar multiplier enhancement of 1.5x, or \$8,990.00, to account for risk and delay in payment. (Mot., pp. 7:28-9:1.)

The Court finds that under the circumstances of this case, a lodestar multiplier is not appropriate. There is no indication that counsel was prevented from taking on other clients by the representation. While counsel accepted the case on a contingency basis and Plaintiff's attorneys advanced all litigation costs and expenses, the Court finds that such consideration and risk is already included within the lodestar amount. That conclusion is because the substantial hourly rates allowed for by the Court are hourly rates for lemon law cases done on a contingency basis.

Based on the foregoing, the Court declines to award a lodestar multiplier.

Entitlement and Reasonableness of Costs

Allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (CCP § 1033.5, subd. (c)(2).) Any items not specifically mentioned by statute "may be allowed or denied in the court's discretion." (CCP, § 1033.5 subd. (c)(4).)

Song-Beverly allows a successful plaintiff to recover both "costs" and "expenses." (Civ. Code, § 1794, subd. (d).) Courts have held that "it is clear the Legislature intended the word

'expenses' to cover items not included in the detailed statutory definition of 'costs.'" (Jensen v.

BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137.) The court in Jensen

held that "[t]he legislative history indicates the Legislature exercised its power to permit the

recovery of expert witness fees by prevailing buyers under the Act ...," noting that the

legislature included "expenses" in the lemon law act because "[t]he addition of awards of "costs

and expenses" by the court to the consumer to cover such out-of-pocket expenses as filing fees,

expert witness fees, marshal's fees, etc., should open the litigation process to everyone.'

[Citation.]" (Ibid.)

Plaintiffs request a total of \$1,964.43 in litigation costs and expenses. (Memo of Costs) The items claimed are proper and necessary on their face, shifting the burden to Defendant to show that they were not reasonable or necessary. Defendant in opposition does not contest the costs. Thus, the costs and expenses are awarded in full as requested in the sum of \$1,964.43.

RULING:

Plaintiffs' Motion for Attorney Fees, Costs, and Expenses is GRANTED, IN PART.

The Court finds that reasonable attorney's fees, costs and expenses are:

Lodestar = \$17,980.00

Expenses and Costs = \$1,964.43

Total Award= \$19,944.43

The total fee award of \$19,944.43 [\$28,934.00 sought] is to be awarded to Plaintiff Michael A. Valdez against Defendant General Motors, LLC and added to the judgment.

Plaintiff is to submit a proposed form of judgment to the court by noon today.

Evidentiary Objections:

Plaintiff's Objection to the Declaration of Brenda L. Hernandez, Exhibit 6 [The Wolters Kluwer Real Rate Report 2021] is OVERRULED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to